

by a department of the Central or a state government, the head of the department or authority shall be deemed to be guilty. This will ensure that the blame is not passed off onto a lower-level government officer.

Protection provided to individuals

The bill provides individuals new protections to control what data about them is collected, stored and processed. Companies and the government can no longer collect, store and use personal data with impunity. One feature that will change is the way in which consent is obtained by websites visited. On these websites, the terms and conditions for rendering online services are quite convoluted and confusing. Even if the user chooses *Agree*, the company cannot argue that it is shielded from liability, just because it sought consent.

Such legalese will be rendered as violating the bill's requirement that consent be clear, specific and informed. Even when an individual consents, and irrespective of what he or she consents to, both companies and the government will not be free to do as they like with the individual's data. They must have a specific purpose for processing it, and they will be allowed to collect only the data necessary for that purpose (this is a collection limitation).

They cannot use or share it for purposes beyond what is necessary for the service (purpose limitation) either. For example, Torchlight app cannot ask for an individual's location data. Even the government is required to demonstrate that any processing of biometric data is strictly necessary. In general, they are required to delete the individual's data when it is no longer necessary to satisfy the purpose for which it has been collected and processed.

Similarly, the government is required to ensure that data is up to date to provide people a service they are entitled to. Under the bill, entities are required to ensure quality of data, so that individuals are not disadvantaged by inaccurate records. While the bill gives



The government needs to include data privacy recommendations by TRAI (Credit: www.indiatoday.in)

to individuals new protections to control what data about them is collected, stored and processed by companies, in reality this control may be deceptive for the majority of the population that relies on government services.

The bill exempts the government from seeking individual consent anytime it is delivering a service or benefit, or providing a licence or certification. Even if it did, the bill is clear that all consequences of withdrawing consent fall on the user.

When an individual gives his or her personal data to a railway ticket booking website, he or she expects it to be used only to book the railway ticket and not to be used for any other purpose, irrespective of what the legalese-filled consent form might contain. This is because the relationship between the individual and the website is based on trust. The individual expects data provided to be used in a certain way and trusts that the entity will do so.

Today, individuals agree to long consent forms on smartphones while downloading apps without really knowing what they are agreeing to. As an example, an app that is meant to provide a taxi for hire can read messages or look at contacts.

The bill addresses this anomaly by introducing principles of collection and defining purpose limitations. Entities will only be allowed to collect information necessary for their service. Also, purposes for which such information is to be used needs to be clearly communicated.

Once a user's username and password is known, whoever has these can engage in various harmful activities. Companies are employing

unique and high-technology system defenders called user behaviour analytics (UBA) that enable detection of any suspicious activity by identifying deviant behaviour or by comparing behaviour within a peer group. In addition, UBA is used as a valuable tool for training employees for improved security practices.

Future perspective

The report and the draft legislation on data protection submitted by Justice Srikrishna's committee of experts provide a sound foundation on which India's legal framework can be built upon. It seeks to codify the relationship between individuals and firms/state institutions as one between data principals (whose information is collected) and data fiduciaries (those processing the data), so that privacy is safeguarded by design.

Justice Srikrishna has expressed that data privacy is a burning issue, and there are three parts to the triangle. The citizen's rights have to be protected, responsibilities of the states have to be defined but data protection cannot be at the cost of trade and industry.

The draft legislation draws inspiration from GDPR, the framework on data protection implemented in the EU. The report envisages creation of a regulatory DPA of India to protect the interests of principals and to monitor the implementation of the provisions for enabling data protection legislation.

Taken together, the draft bill and the report mark a significant step forwards, but there are some grey areas. Exemptions to state institutions from acquiring informed consent from principals or processing personal data in many cases are too broad, such as those pertaining to the security of the state. These are hold-all phrases, and checks are vital. The report recommends a law to provide for parliamentary oversight and judicial approval of non-consensual access to personal data.

As per the draft bill, data fiduciaries should collect only required data from an individual, state the purpose of its